

2	Dang vs. America West Lender Services, LLC 2025-01477410	1. Demurrer to Amended Complaint 2. Case Management Conference Defendants 5692 Karen Ave LLC and Edward Balta's demur to Plaintiff's First amended Complaint. Before filing a demurrer, the moving party shall meet and confer with the opposing party in person, by telephone, or by video conference at least 5 days before a responsive pleading is due to see if a resolution can be reached on the objections to the pleading. (Code Civ. Pro., § 430.41, subds. (a), (a)(2).) David Khoury, counsel for Defendants 5692 Karen Ave LLC and Edward Balta, states he sent Plaintiff's counsel a letter requesting a meet and confer. (Khoury Decl., ¶ 5, Ex. 1.) Plaintiff's counsel stated he was available to meet and confer but did not respond to a follow-up email from Defendants' counsel regarding availability. (Khoury Decl., ¶¶ 6-8.) As of the filing of the demurrer, Defendants' counsel has not heard back from Plaintiff's counsel regarding a meet and confer. (Khoury Decl., ¶ 9.) This does not satisfy the meet and confer requirement. Tentative Ruling: The Court ORDERS the parties to meaningfully meet and confer in person, by telephone, or by video conference (email/letter is insufficient) concerning the issues raised in the demurrer. Defendants are to file and serve a declaration no later than nine (9) court days before the hearing date describing the parties' meet and confer efforts, and specifying what issues have been resolved, or remain for the Court to resolve. If no declaration is timely filed, the Court will construe this to mean that the issues have been resolved and will take the demurrer off-calendar. Demurrer to Plaintiff's First amended Complaint is
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3	Funding Capital Corp LLC vs. Garfield Langmuir – Logan 2024-01437501	1. Motion for Leave to File Amended Complaint 2. Case Management Conference Continued to 07/13/2026, 1;45pm, Department C15
4	Kirshner vs. 3 Day Blinds LLC 2025-01527621	1. Demurrer to Complaint 2. Motion to Strike <u>Demurrer</u> Defendant 3 Day Blinds, LLC’s demurs to the Complaint. Balsam v. Trancos, Inc. (2012) 203 Cal.App.4th 1083 and Hypertouch, Inc. v. ValueClick, Inc. (2011) 192 Cal.App.4th 805 provide an in depth discussion of California Business & Professions Code § 17529.5 and the CAN-SPAM Act: “This Act supersedes any statute, regulation, or rule of a State or political subdivision of a State that expressly regulates the use of electronic mail to send commercial messages, except to the extent that any such statute, regulation, or rule prohibits falsity or deception in any portion of a commercial electronic mail message or information attached thereto.” (15 U.S.C., § 7707, subd. (b)(1) [CAN-SPAM Act].) Thus, the CAN-SPAM Act preempts state law regarding commercial email advertising except where there is false or deceptive messaging. Here, Plaintiff alleges the email’s header was false or deceptive. (Compl., ¶ 16(a).) Thus, Plaintiff’s claims are not preempted. Defendant next argues the allegations are insufficient to constitute falsity or deception pursuant to California Business & Professions Code § 17529.5. Defendant claims there is no requirement the “From” field identify the sender’s domain. A single email with a traceable domain name which does not identify the sender or the advertiser, even if the domain name is “ ‘random,’ ‘varied,’ ‘garbled,’ and ‘nonsensical’ when viewed in conjunction with